

STATE OF NEW YORK

5142--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. ANDERSON, ALVAREZ, BEEPHAN, BICHOTTE HERMELYN, BURDICK, R. CARROLL, CHANDLER-WATERMAN, COLTON, COOK, CRUZ, CUNNINGHAM, DAVILA, DAIS, DE LOS SANTOS, EPSTEIN, FORREST, FITZPATRICK, GIBBS, HEVESI, HYNDMAN, JACKSON, KIM, MAHER, MEEKS, OTIS, RAGA, REYES, SEAWRIGHT, SEPTIMO, TAPIA, TAYLOR, WALKER, WEPRIN, ZINERMAN -- Multi-Sponsored by -- M. of A. BROOK-KRASNY -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York, in relation to allowing commuter vans to accept hails from prospective passengers in the street

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision p of section 19-502 of the administrative code
2 of the city of New York, as amended by local law number 37 of the city
3 of New York for the year 2019, is amended to read as follows:
4 p. "Commuter van" means a commuter van service having a seating capac-
5 ity of at least nine passengers but not more than twenty passengers or
6 such greater capacity as the commission may establish by rule and carry-
7 ing passengers for hire in the city duly licensed as a commuter van by
8 the commission and not permitted to accept hails from prospective
9 passengers in the street except as authorized pursuant to subdivision c
10 of this section. For purposes of the provisions of this chapter relating
11 to prohibitions against the operation of an unauthorized commuter van
12 service or an unlicensed commuter van, the enforcement of such prohibi-
13 tions and the imposition of penalties for violations of such prohibi-
14 tions and to the seizure and forfeiture of commuter vans, the term shall
15 also include any common carrier of passengers by motor vehicle not
16 subject to licensure as a taxicab, for-hire vehicle, or wheelchair
17 accessible van and not operating as a public or private bus transit
18 service operated pursuant to a contract with the city, any county within

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the state of New York, the state of New York or any other state or local
2 government that follows the applicable procurement rules and regulations
3 of such jurisdiction regardless of the seating capacity of any such
4 vehicle. The commission shall submit to the council the text of any
5 proposed rule relating to the maximum capacity of commuter vans at the
6 time such proposed rule is published in the City Record.

7 § 2. Paragraph 1 of subdivision a of section 19-504 of the administra-
8 tive code of the city of New York, as amended by local law number 115 of
9 the city of New York for the year 1993, is amended to read as follows:

10 (1) A taxi-cab, coach, wheelchair accessible van, commuter van or
11 for-hire vehicle shall operate within the city of New York only if the
12 owner shall first have obtained from the commission a taxicab, coach,
13 wheelchair accessible van, commuter van or for-hire vehicle license for
14 such vehicle and only while such license is in full force and effect.
15 Vehicle licenses shall be issued for a term of not less than one nor
16 more than two years and shall expire on the date set forth on the
17 license unless sooner suspended or revoked by the commission. No motor
18 vehicle other than a duly licensed taxicab or commuter van where author-
19 ized pursuant to subdivision c of section 19-502 of this chapter shall
20 be permitted to accept hails from passengers in the street. No commuter
21 van shall be operated within the city of New York unless it is operated
22 as part of a current, valid authorization to operate a commuter van
23 service duly issued by the commission pursuant to section 19-504.2 of
24 this chapter.

25 § 3. The section heading of section 19-516 of the administrative code
26 of the city of New York, as amended by local law number 115 of the city
27 of New York for the year 1993, is amended to read as follows:

28 Acceptance of passengers by for-hire vehicles [~~and commuter vans~~].

29 § 4. Subdivision b of section 19-516 of the administrative code of the
30 city of New York, as amended by local law number 6 of the city of New
31 York for the year 2017, is amended and a new subdivision c is added to
32 read as follows:

33 b. ~~[No]~~ Except as provided in subdivision c of this section, no commu-
34 ter van service and no person who owns, operates or drives a commuter
35 van, shall provide, permit or authorize the provision of transportation
36 service to a passenger unless such service to a passenger is on the
37 basis of a telephone contract or other prearrangement. Where a violation
38 of this subdivision has been committed by a driver of a commuter van,
39 the commuter van service and the owner of such vehicle shall also be
40 liable for a violation of this subdivision.

41 c. The commission shall establish a program, in which commuter vans
42 duly licensed by the commission to carry passengers for hire are author-
43 ized to accept hails from prospective passengers in the streets of the
44 city of New York within Manhattan community district two, Queens commu-
45 nity district twelve, Brooklyn community district five, Brooklyn commu-
46 nity district nine, Brooklyn community district sixteen, Brooklyn commu-
47 nity district seventeen, and Brooklyn community district eighteen
48 provided that such authorization shall prohibit the pick up of passen-
49 gers by street hail at airports or in such other area as the commission
50 shall by rule prohibit. No later than February first, two thousand
51 twenty-eight and annually thereafter, the commission shall submit a
52 report to the mayor, speaker of the council, governor, the temporary
53 president of the senate, and the speaker of the assembly, evaluating the
54 program with an analysis of the impact of commuter vans accepting hails
55 from prospective passengers in the streets and any recommendations of
56 the commission regarding the authorization of commuter vans to accept

1 hails from prospective passengers in the streets of the city of New
2 York.

3 § 5. This act shall take effect on the ninetieth day after it shall
4 have become a law.